SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (9 JUDGES)

Civil Appeal No. 3645 of 1989 **CNR: SCIN010036451989**

Date of Pronouncement: 11 March, 1994 *Citation: (1994) 3 SCC 1*

CORAM: Hon'ble S. Ratnavel Pandian, A.M. Ahmadi, J.S. Verma, P.B. Sawant, K. Ramas

Petitioner / Appellant: S.R. Bommai & Others

- VERSUS -

Respondent / State: Union of India & Others

SUBJECT: CONSTITUTIONAL LAW & FEDERALISM **AUTHORITY: Good Law (9-Judge Federalism Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Presidential proclamation under Article 356 is subject to judicial review on grounds of mala fides or irrelevant considerations. The Legislative Assembly cannot be dissolved until Parliament approves the proclamation under Article 356(3).

STATUTORY PROVISIONS INTERPRETED: Article 356, Article 355, Article 74(2), Article 174, Article 226

FINAL DISPOSITION: GUIDELINES ON ARTICLE 356 AND ASSEMBLY DISSOLUTION ESTABLISHED

EXECUTIVE SUMMARY:

Nine-judge bench laid down stringent safeguards against arbitrary imposition of President's Rule under Article 356. Floor test in the Legislative Assembly is the only authentic method to prove majority.

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